

Master Services Agreement Extract

Section 4. Service Levels

The Provider shall maintain availability of no less than 99.9 percent measured monthly. Service credits accrue per the table below when availability falls beneath the committed threshold.

Monthly Uptime	Service Credit
99.0 to 99.9 percent	5 percent
95.0 to 99.0 percent	15 percent
Below 95.0 percent	30 percent

Section 5. Indemnification. Each party shall indemnify the other against third-party claims arising from its gross negligence or willful misconduct, subject to the limitations in Section 8.